

- (b) 'Commission' means the Union Public Service Commission,
- (c) 'disciplinary authority' means -
 - (i) in relation to the imposition of a penalty on a Railway servant, the authority competent, under these rules, to impose on him that penalty;
 - (ii) in relation to Rule 9 and clauses (a) and (b) of sub-rule (1) of Rule 11 in the case of any gazetted Railway servant, an authority competent to impose any of the penalties specified in Rule 6;
 - (iii) in relation to Rule 9 in the case of any non-gazetted Railway servant, an authority competent to impose any of the major penalties specified in Rule 6;
 - (iv) in relation to clauses (a) and (b) of sub-rule (1) of Rule 11, in the case of a non-gazetted Railway servant, an authority competent to impose any of the penalties specified in Rule 6.
- (d) 'head of the department' for the purpose of exercising the powers as appointing, disciplinary, appellate or revising authority, means the authority declared to be head of the department in terms of clause (21) of Rule 103 of Volume I of the Indian Railway Establishment Code (Fifth Edition-1985);
- (e) 'Railway servant' means a Railway servant as defined in clause 43 of Rule 103 of Volume I of the Indian Railway Establishment Code (Fifth Edition-1985) and includes any such Railway servant on foreign service or whose services are temporarily placed at the disposal of any other department of the Central Government or a State Government or a local or other authority;
- (f) 'Service' means a service under the Ministry of Railways;
- (g) 'Schedule' means a schedule appended to these rules.

(2) All other words and expressions used but not defined in these rules and defined in the Indian Railways Act, 1890 (9 of 1890) shall have the meanings respectively assigned to them under that Act.

3. **Application** - (1) These rules shall apply to every Railway servant but shall not apply to -

- (a) any member of the All India Services;
- (b) any member of the Railway Protection Force as defined in the Railway Protection Force Act, 1957 (23 of 1957);
- (c) any person in casual employment; and
- (d) any person for whom special provision is made, in respect of matters covered by these rules by or under any law for the time being in force or by or under any agreement entered into by or with the previous approval of the President before or after the commencement of these rules, in regard to matters covered by such special provisions.

(2) Notwithstanding anything contained in sub-rule (1), the President may, by order, exclude any class of Railway servants from the operation of all or any of these rules.